

[illegible]

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Deep Trekker Revolution Base, Dual Chamber Batteries Free online videoconference startup training Enhanced 4K camera 7" LCD handheld controller with 65GB SD Card BRIDGE Software 300M (984') Tether Tether Reel Pelican Case with Wheels Sensors for Heading and Depth Rotating Head Grabber Arm Auxiliary Floodlights Laser Scaler Batteries and Chargers included Spare Battery Set Microphone 305M (1000') Depth Rating Fully Assembled and Tested 1- year manufacturer warranty Model Number: Revolution Base Package Claimant Program Code: C9E Pricing Arrangement: Firm Fixed Price	2	Each		
0002	Deep Trekker Dead Reckoning Package - Revolution: Enable Dead Reckoning on Revolution ROV Improved IMUs (SensorPod+), Doppler Velocity Log (DVL) & ROV GPS Water Linked A50 + Integration Included in price Dead Reckoning is Position Tracking with Initial Start position input by user Allows user to track ROV between USBL or GPS. Pink more accurately, or without any external input at all Approximately 1M/min drift, depending on uses (driving in straight lines improves drift Impact). Model Number: Dead Reckoning Package Claimant Program Code: C9E Pricing Arrangement: Firm Fixed Price	2	Each		

0003	Deep Trekker Oculus M3000D Sonar + Integration - Revolution Model Number: Oculus M3000D Claimant Program Code: C9E Pricing Arrangement: Firm Fixed Price	2	Each		
0004	Deep Trekker Direct Power Kit - 300M Tether, Reel, Cases, Revolution DC Direct power modules 120-220VAC, 50/60hz input, power box 300M Tether (10mm Diameter) Tether Reel Pelican Case Case for Power Box Model Number: Direct Power Kit - 300M Claimant Program Code: C9E Pricing Arrangement: Firm Fixed Price	2	Each		
0005	Deep Trekker Bundle, 6 Pack Attachments Interlocking small claw Interlocking large claw Three jaw grabber claw Water sampler, 100cc Sediment sampler 250cc Caliper Model Number: Manipulator Bundle Pack Claimant Program Code: C9E Pricing Arrangement: Firm Fixed Price	1	Each		
0006	Deep Trekker Zoom Camera, 1080P Bottom Mount, 10X Optical, 20X digital - Revolution. Mounts in grabber position on rotating Revolution head 1080P resolution 10X optical zoom 20X digital zoom Model Number: Zoom Camera, 1080P Claimant Program Code: C9E Pricing Arrangement: Firm Fixed Price	2	Each		
0007	Deep Trekker Attachment, Sealed Sediment Sampler, 500C Model Number: Sealed Sediment Sampler Claimant Program Code: C9E	1	Each		

	Pricing Arrangement: Firm Fixed Price				
0008	Deep Trekker External, Floodlight, Double 3400 Lumens - Revolution/DTG3 3400 lumens Aux floodlights with external floodlights Model Number: Revolution/DTG3 Claimant Program Code: C9E Pricing Arrangement: Firm Fixed Price	1	Each		
0009	Deep Trekker Multiparameter Sonde + Integration Kit - Revolution 150M depth rating No sensors, 4 port sonde only Model Number: Multiparameter Sonde + Integration Kit Claimant Program Code: C9E Pricing Arrangement: Firm Fixed Price	1	Each		
0010	Deep Trekker Echo Sounder Integration Kit - Revolution Dual Chambers Model Number: Echo Sounder Integration Kit Claimant Program Code: C9E Pricing Arrangement: Firm Fixed Price	1	Each		
0011	Deep Trekker Extension Harness - Revolution Model Number: Extension Harness Claimant Program Code: C9E Pricing Arrangement: Firm Fixed Price	1	Each		
0012	Small Shipping Box Seller's Lot Number: 00NA Claimant Program Code: C9E Pricing Arrangement: Firm Fixed Price	6	Each		
0013	Large Shipping Box Seller's Lot Number: 00NA Claimant Program Code: C9E	9	Each		

	Pricing Arrangement: Firm Fixed Price				
0014	Shipping Insurance for the following systems: Each Remote Operated Vehicle - Revolution Base Dual Chamber Batteries System Each Water-linked 3D Sonar and Integration System Seller's Lot Number: 00NA Claimant Program Code: C9E Pricing Arrangement: Firm Fixed Price	1	Each		
0015	Deep Trekker Water-link 3D-15 Sonar + Integration System - Revolution DC Water-linked 3D Sonar for real time 3D visualization Zoom Camera, 1080P Bottom Mount, 10X Optical, 20X Digital - Revolution: Mounts in grabber position on rotating Revolution head 1080p resolution, 10 optical zoom, 20x digital zoom Model Number: 3D-15 Sonar Model Number: 1080P Zoom Camera Claimant Program Code: C9E Pricing Arrangement: Firm Fixed Price	1	Each		
0016	*Deep Trekker Rental of Revolution System for 18 weeks. System must include the following: Revolution base dual chamber batteries Enhanced 4K camera 7" LCD handheld controller with 64GB SD card BRIDGE software 300M (984') Tether Tether Reel Pelican case with wheels Sensors for heading and depth Rotating head Grabber arm Auxiliary floodlights Laser scaler Batteries and chargers included Spare battery set Microphone 305M (1000') depth rating Fully assembled and tested 1-year manufacturer's warranty Dead Reckoning Package - Revolution: Enabled for Dead Reckoning on Revolution	18	Each		

ROV Includes improved IMUs (SensorPod+) Doppler Velocity Log (DVL) & ROV GPS Water-linked A50+ integration included in Price Dead reckoning is position tracking with initial start position input by user Allows user to track ROV between USBL or GPS Pings more accurately, or without any external input at all Approximately 1M/Min drift, depending on uses Oculus M30000D Sonar + Integration - Revolution Direct power kit 0 300M tether, reel, cases - Revolution DC Direct power modules 120-220VAC, 50 /60hz input, power box 300M tether (10mm diameter) Tether reel Pelican case Case for power box *Equipment must be delivered on or before May 25, 2026. Model Number: M3000D Model Number: REVOLUTION DC-BASE Claimant Program Code: C9E Pricing Arrangement: Firm Fixed Price				
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Continuation of Description

Description of Requirements for Underwater ROV Systems and System Rental

The Environmental Laboratory (EL) is recognized worldwide as the problem solver in environmental science and engineering research for US Army, the Department of Defense, and the Nation. R&D activities address a multitude of environmental issues to advance civil works, water resources, military installations, and the warfighter. Research activities include ecosystem restoration, ecological resources, and contaminant management, risk and decision science, environmental sensing, ecological modeling and forecasting, environmental security, and environmentally sustainable material.

The Engineer Research & Development Center (ERDC), Environmental Laboratory (EL), Environmental Systems Branch (EEC) is seeking to purchase two separate underwater ROV systems, one water-linked 3D Sonar system, and 18 weeks of rental for an underwater ROV while systems are being built for shipment.

All items must be available to ship to USACE ERDC in Vicksburg, MS by 30 September 2026. All specifications for each system is listed below.

ROV 1 Revolution Base, Dual Chamber Batteries QTY of 1 of each unless noted

SKU	Description
I7511-DC-BASE	Revolution Base, Chamber Batteries - Free online videoconference startup training - Enhanced 4K camera - 7" LCD handheld controller with 65GB SD Card - BRIDGE Software - 300M (984') Tether - Tether Reel - Pelican Case with Wheels - Sensors for Heading and Depth

	- Rotating Head - Grabber Arm - Auxiliary Floodlights - Laser Scaler - Batteries and Chargers included - Spare Battery Set - Microphone - 305M (1000') Depth Rating - Fully Assembled and Tested - 1- year manufacturer warranty
I2693+8250+2731	Dead Reckoning Package - Revolution: - Enable Dead Reckoning on Revolution ROV - Improved IMUs (SensorPod+), Doppler Velocity Log (DVL) & ROV GPS - Water Linked A50 + Integration Included in price - Dead Reckoning is Position Tracking with Initial Start position input by user - Allows user to track ROV between USBL or GPS. - Pink more accurately, or without any external input at all - Approximately 1M/min drift, depending on uses (driving in straight lines improves drift Impact).
I2107-M3000D	Oculus M3000D Sonar + Integration - Revolution
	Direct Power Kit - 300M Tether, Reel, Cases, Revolution DC

I8560+1701+8808+8486-300+5278	- Direct power modules - 120-220VAC, 50/60hz input, power box - 300M Tether (10mm Diameter) - Tether Reel - Pelican Case - Case for Power Box
I7602	Bundle, 5 Pack Attachments - Interlocking small claw - Interlocking large claw - Three jaw grabber claw - Water sampler, 100cc - Sediment sampler 250cc - Caliper
I8398-X3-BOTTOM	Zoom Camera, 1080P Bottom Mount, 10X Optical, 20X digital - Revolution. - Mounts in grabber position on rotating Revolution head - 1080P resolution - 10X optical zoom - 20X digital zoom
I8382	Attachment, Sealed Sediment Sampler, 500C

I7650	External, Floodlight, Double 3400 Lumens - Revolution/DTG3 - 3400 lumens - Aux floodlights with external floodlights.
I7625	Multiparameter Sonde + Integration Kit - Revolution - 150M depth rating - No sensors, 4 port sonde only
I2935	Echo Sounder Integration Kit - Revolution Dula chamber
N/A	Large Shipping Box (QTY 4)
N/A	Small Shipping Box (QTY 3)
N/A	Shipping Insurance

ROV 2 Revolution Base Dual Chamber Batteries System QTY of 1 each unless noted

SKU	Description
I7511-DC-BASE	Revolution Base, Dual Chamber Batteries: - Revolution ROV Base DC - Free online videoconference startup training

	- Enhanced 4K Camera - 7" LCD handheld controller with 64GB SD card - BRIDGE software - 300M (984') tether - Tether reel - Pelican case with wheels - Sensors for heading and depth - Rotating head - Auxiliary floodlights - Laser scaler - Batteries and chargers included - Spare battery set - Microphone - 305M (1000') depth rating - Fully assembled and tested - 1 year manufacturer's warranty
I2693+8250+2731	Dead Reckoning Package - Revolution - Enable Dead Reckoning on Revolution ROV - Includes improved IMUs (SensorPod+), Doppler Velocity Log (DVL) & ROV GPS - Water-linked A50+ integration included in price - Dead Reckoning in position tracking with initial start position unput by user

	- Allows for user to track ROV between USBL or GPS - Pings more accurately or without any external input at all - Approximately 1M/min Drift, Depending
I2107-M3000D	Oculus M3000D Sonar + Integration - Revolution
I8560+1701+8808+848+6-300+5278	Direct Power Kit - 300M Tether, Reel Cases - Revolution DC: - Direct Power Modules - 120-220VAC, 50/60hz Input, Power Box - 300M Tether (10mm Diameter) - Tether Reel - Pelican Case - Case for power box
5761-E	Extension Harness
N/A	Large box for shipping (QTY 4)
N/A	Small box for shipping (QTY 3)
N/A	Shipping insurance

Water-linked 3D Sonar System QTY of 1 for each item

SKU	Description
3549	Water-linked 3D-15 Sonar + Integration - Revolution DC - Water-linked 3D Sonar for real time 3D visualization
I8398-X3-BOTTOM	Zoom Camera, 1080P Bottom Mount, 10X Optical, 20X Digital - Revolution: - Mounts in grabber position on rotating Revolution head - 1080p resolution, 10 optical zoom, 20x digital zoom
N/A	Large box for shipping
N/A	Shipping insurance

Rental of Revolution System for 18 Weeks, QTY of 1 each unless noted

SKU	Description

I7511-DC-BASE	Revolution base dual chamber batteries: - Enhanced 4K camera - 7" LCD handheld controller with 64GB SD card - BRIDGE software - 300M (984') Tether - Tether Reel - Pelican case with wheels - Sensors for heading and depth - Rotating head - Grabber arm - Auxiliary floodlights - Laser scaler - Batteries and chargers included - Spare battery set - Microphone - 305M (1000') depth rating - Fully assembled and tested - 1-year manufacturer's warranty
I2693+8250+2731	Dead Reckoning Package - Revolution: - Enabled for Dead Reckoning on Revolution ROV - Includes improved IMUs (SensorPod+) - Doppler Velocity Log (DVL) & ROV GPS - Water-linked A50+ integration included in Price

	- Dead reckoning is position tracking with initial start position input by user - Allows user to track ROV between USBL or GPS - Pings more accurately, or without any external input at all - Approximately 1M/Min drift, depending on uses
I2107-M3000D	Oculus M3000D Sonar + Integration - Revolution
I8560+1701+8808+8486-300+5278	Direct power kit 0 300M tether, reel, cases - Revolution DC - Direct power modules - 120-220VAC, 50/60hz input, power box - 300M tether (10mm diameter) - Tether reel - Pelican case - Case for power box

*** END OF NARRATIVE ***

Requirements

Supply purchase of Brand name Deep Trekker ROVs and Rental ROV.

0001

Product Service Code : 5840

0002

Product Service Code : 5840

0003

Product Service Code : 5840

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Product Service Code : 5840

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Product Service Code : 5840

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Product Service Code : 5840

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Product Service Code : 5840

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Product Service Code : 5840

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Product Service Code : 5840

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Product Service Code : 5840

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Product Service Code : 5840

0012

Product Service Code : 5840

0013

Product Service Code : 5840

0014

Product Service Code : 5840

0015

Product Service Code : 5840

0016

Product Service Code : 5840

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: See Description of Requirements for Inspect and Accept criteria. DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber
0002	Inspection and Acceptance Location Both Destination Instructions: See Description of Requirements for Inspect and Accept criteria. DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber
0003	Inspection and Acceptance Location Both Destination Instructions: See Description of Requirements for Inspect and Accept criteria.

	DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber
0004	Inspection and Acceptance Location Both Destination Instructions: See Description of Requirements for Inspect and Accept criteria. DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber
0005	Inspection and Acceptance Location Both Destination Instructions: See Description of Requirements for Inspect and Accept criteria. DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber

0006	Inspection and Acceptance Location Both Destination Instructions: See Description of Requirements for Inspect and Accept criteria. DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber
0007	Inspection and Acceptance Location Both Destination Instructions: See Description of Requirements for Inspect and Accept criteria. DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber
0008	Inspection and Acceptance Location Both Destination Instructions: See Description of Requirements for Inspect and Accept criteria. DoDAAC: W81EWF CountryCode: USA

	W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber
0009	Inspection and Acceptance Location Both Destination Instructions: See Description of Requirements for Inspect and Accept criteria. DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber
0010	Inspection and Acceptance Location Both Destination Instructions: See Description of Requirements for Inspect and Accept criteria. DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber
0011	Inspection and Acceptance Location

	Both Destination Instructions: See Description of Requirements for Inspect and Accept criteria. DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber
0012	Inspection and Acceptance Location Both Destination Instructions: See Description of Requirements for Inspect and Accept criteria. DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber
0013	Inspection and Acceptance Location Both Destination Instructions: See Description of Requirements for Inspect and Accept criteria. DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD

	VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber
0014	Inspection and Acceptance Location Both Destination Instructions: See Description of Requirements for Inspect and Accept criteria. DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber
0015	Inspection and Acceptance Location Both Destination Instructions: See Description of Requirements for Inspect and Accept criteria. DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber
0016	Inspection and Acceptance Location

Both

Destination

Instructions: See Description of Requirements for Inspect and Accept criteria.

DoDAAC: W81EWF

CountryCode: USA

W2R2 USA ENGR R&D CTR

WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD

VICKSBURG, MS 39180-6133

UNITED STATES

Kayley Laber

Continuation of Deliveries or Performance

0001	Delivery Schedule Delivery Estimated By Delivery Date 30 Sep 2026 Quantity 2 Each Address and POC Ship To DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination
0002	Delivery Schedule Delivery Estimated By Delivery Date 30 Sep 2026 Quantity 2 Each Address and POC Ship To DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES

	Kayley Laber Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination
0003	Delivery Schedule Delivery Estimated By Delivery Date 30 Sep 2026 Quantity 2 Each Address and POC Ship To DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination
0004	Delivery Schedule Delivery Estimated By Delivery Date 30 Sep 2026 Quantity 2 Each

	Address and POC Ship To DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination
0005	Delivery Schedule Delivery Estimated By Delivery Date 30 Sep 2026 Quantity 1 Each Address and POC Ship To DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber Special Handling/Notes FoB Details

	Party to Pay Transportation Cost: Contractor Point Type: Destination
0006	Delivery Schedule Delivery Estimated By Delivery Date 30 Sep 2026 Quantity 2 Each Address and POC Ship To DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination
0007	Delivery Schedule Delivery Estimated By Delivery Date 30 Sep 2026 Quantity 1 Each Address and POC Ship To DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR

	WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination
0008	Delivery Schedule Delivery Estimated By Delivery Date 30 Sep 2026 Quantity 1 Each Address and POC Ship To DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination
0009	Delivery Schedule

	Delivery Estimated By Delivery Date 30 Sep 2026 Quantity 1 Each Address and POC Ship To DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination
0010	Delivery Schedule Delivery Estimated By Delivery Date 30 Sep 2026 Quantity 1 Each Address and POC Ship To DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber

	Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination
0011	Delivery Schedule Delivery Estimated By Delivery Date 30 Sep 2026 Quantity 1 Each Address and POC Ship To DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination
0012	Delivery Schedule Delivery Estimated By Delivery Date 30 Sep 2026 Quantity 6 Each Address and POC Ship To

	DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination
0013	Delivery Schedule Delivery Estimated By Delivery Date 30 Sep 2026 Quantity 9 Each Address and POC Ship To DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination

0014	Delivery Schedule Delivery Estimated By Delivery Date 30 Sep 2026 Quantity 1 Each Address and POC Ship To DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination
0015	Delivery Schedule Delivery Estimated By Delivery Date 30 Sep 2026 Quantity 1 Each Address and POC Ship To DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES

	Kayley Laber Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination
0016	Delivery Schedule From date of lead time event to delivery 10 Calendar Days Date of Award Receipt Quantity 18 Each Address and POC Ship To DoDAAC: W81EWF CountryCode: USA W2R2 USA ENGR R&D CTR WATERWAYS EXPERIMENT STATION, 3909 HALLS FERRY ROAD VICKSBURG, MS 39180-6133 UNITED STATES Kayley Laber Special Handling/Notes FoB Details Party to Pay Transportation Cost: Contractor Point Type: Destination

Continuation of Accounting and Appropriation Data

Administrative Data - General Information

1. Please submit quotation on or before May 13, 2026 at 1:00PM Central Standard Time to Shinita Jordan via e-mail at Shinita.M.Jordan@usace.army.mil and Sonia Boyd via email at Sonia.J.Boyd@usace.army.mil.

CONTRACTING POINT OF CONTACT:

Contracting Officer - Sonia Boyd

Sonia.J.Boyd@usace.army.mil

Contract Specialist - Shinita Jordan

Shinita.M.Jordan@usace.army.mil

2. Delivery Schedule: Delivery of Rental equipment on or before May 25, 2026, and new system on or before 30 September 2026 and is to be coordinated with technical government personnel.

Delivery: _____

3. Active registration in the System for Award Management database (www.sam.gov)?

_____ YES _____ NO

NOTE: If you are not registered in the SAM database, an award CANNOT be made to your company. You may register electronically at <http://www.sam.gov>. Registering electronically will expedite the registration process.

4. Please provide the following information:

VENDOR POINT OF CONTACT:

Title:

Name:

Office Number:

Fax Number:

E-mail:

UEI Number:

CAGE Code:

5. Government Contracting Point of Contact:

Shinita Jordan, Shinita.M.Jordan@usace.army.mil. and Sonia Boyd, Sonia.J.Boyd@usace.army.mil.

*** END OF NARRATIVE ***

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-3	Gratuities.	1984-04		
52.203-6	Restrictions on Subcontractor Sales to the Government. (Alternate I)	2020-06	Alternate I	2021-11
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	2026-02		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	2026-02		
52.219-8	Utilization of Small Business Concerns. (Deviation 2026-O0038)	2026-02		
52.222-19	Child Labor-Cooperation with Authorities and Remedies. (Deviation 2026-O0038)	2026-03		
52.222-35	Equal Opportunity for Veterans. (Deviation 2026-O0038)	2026-02		

52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	2026-02
52.222-37	Employment Reports on Veterans. (Deviation 2026-O0038)	2026-02
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation 2026-O0038)	2026-02
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	2026-02
52.222-54	Employment Eligibility Verification. (Deviation 2026-O0038)	2026-02
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05
52.229-12	Tax on Certain Foreign Procurements.	2021-02
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03
52.233-3	Protest after Award. (Deviation 2026-O0038)	2026-02
52.233-4	Applicable Law for Breach of	2026-02

Contract Claim. (Deviation 2026-00038)

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	2024-05		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01		
252.204-7022	Expediting Contract Closeout.	2021-05		
252.223-7008	Prohibition of Hexavalent Chromium.	2023-01		
252.225-7012	Preference for Certain Domestic Commodities.	2022-04		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01		

252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	2023-06
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12
252.232-7010	Levies on Contract Payments.	2006-12
252.232-7011	Payments in Support of Emergencies and Contingency Operations.	2013-05
252.243-7002	Requests for Equitable Adjustment.	2022-12
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	2023-11
252.246-7008	Sources of Electronic Parts.	2023-01
252.247-7023	Transportation of Supplies by Sea.	2024-10

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-4	Terms and Conditions- Commercial Products and Commercial Services. (Deviation 2026-O0038) (Alternate I)	2026-02	Alternate I	2026-02

Alternate I (Feb 2026) (Deviation 2026-O0038). When contemplating a time-and-materials or labor-hour contract, substitute the following paragraphs (a), (b), (i), (l), and (m) for those in the basic clause.

(a) The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference. As used in this clause-

Direct materials means those materials that enter directly into the end product, or that are used or consumed directly in connection with the furnishing of the end product or service.

Hourly rate means the rate(s) prescribed in the contract for payment for labor that meets the labor category qualifications of a labor category specified in the contract that are-

- (1) Performed by the contractor;
- (2) Performed by the subcontractors; or
- (3) Transferred between divisions, subsidiaries, or affiliates of the contractor under a common control.

Materials means-

- (1) Direct materials, including supplies transferred between divisions, subsidiaries, or affiliates of the contractor under a common control;
- (2) Subcontracts for supplies and incidental services for which there is not a labor category specified in the contract;
- (3) Other direct costs (e.g., incidental services for which there is not a labor category specified in the contract, travel, computer usage charges, etc.);
- (4) The following subcontracts for services which are specifically excluded from the hourly rate:
 Insert any subcontracts for services to be excluded from the hourly rates prescribed in the schedule.; and
- (5) Indirect costs specifically provided for in this clause.

Subcontract means any contract, as defined in FAR 2.101, entered into with a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract including transfers between divisions, subsidiaries, or affiliates of a contractor or subcontractor. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) *Inspection/Acceptance*.

- (1) The Government has the right to inspect and test all materials furnished and services performed under this contract at all places and times before acceptance. The Government will perform inspections and tests in a manner that will not unduly delay the work.
- (2) If the Government performs inspection or tests on the premises of the Contractor or a subcontractor, the Contractor shall furnish and shall require subcontractors to furnish all reasonable facilities and assistance for the safe and convenient performance of these duties.
- (3) Unless otherwise specified in the contract, the Government will accept or reject services and materials at the place of delivery as promptly as practicable after delivery, and they will be presumed accepted 60 days after the date of delivery, unless accepted earlier.
- (4) At any time during contract performance, but not later than 6 months (or such other time as may be specified in the contract) after acceptance of the services or materials last delivered under this contract, the Government may require the Contractor to replace or correct services or materials that at time of delivery failed to meet contract requirements. Except as otherwise specified in paragraph (b)(6) of this clause, the cost of replacement or correction shall be determined under paragraph (i) of this clause, but the "hourly rate" for labor hours incurred in the replacement or correction shall be reduced to exclude that portion of the rate attributable to profit. Unless otherwise specified below, the portion of the "hourly rate" attributable to profit shall be 10 percent. The Contractor shall not tender for acceptance materials and services required to be replaced or corrected without disclosing the former requirement for replacement or correction, and, when required, shall disclose the corrective action taken. _____/Insert portion of labor rate attributable to profit./
- (5)(i) If the Contractor fails to proceed with reasonable promptness to perform required replacement or correction, and if the replacement or correction can be performed within the ceiling price (or the ceiling price as increased by the Government), the Government may-
 - (A) By contract or otherwise, perform the replacement or correction, charge to the Contractor any increased cost, or deduct such increased cost from any amounts paid or due under this contract; or
 - (B) Terminate this contract for cause.
- (ii) Failure to agree to the amount of increased cost to be charged to the Contractor shall be a dispute under the Disputes clause of the contract.
- (6) Notwithstanding paragraphs (b)(4) and (5) of this clause, the Government may, at any time, require the Contractor to remedy by correction or replacement, without cost to the Government, any failure by the Contractor to comply with the requirements of this contract, if the failure is due to-
 - (i) Fraud, lack of good faith, or willful misconduct on the part of the Contractor's managerial personnel; or

(ii) The conduct of one or more of the Contractor's employees selected or retained by the Contractor after any of the Contractor's managerial personnel has reasonable grounds to believe that the employee is habitually careless or unqualified.

(7) This clause applies in the same manner and to the same extent to corrected or replacement materials or services as to materials and services originally delivered under this contract.

(8) The Contractor has no obligation or liability under this contract to correct or replace materials and services that at time of delivery do not meet contract requirements, except as provided in this clause or as may be otherwise specified in the contract.

(9) Unless otherwise specified in the contract, the Contractor's obligation to correct or replace Government-furnished property shall be governed by the clause pertaining to Government property.

(i) *Payments.*

(1) *Work performed.* The Government will pay the Contractor as follows upon the submission of commercial invoices approved by the Contracting Officer:

(i) *Hourly rate.*

(A) The amounts shall be computed by multiplying the appropriate hourly rates prescribed in the contract by the number of direct labor hours performed. Fractional parts of an hour shall be payable on a prorated basis.

(B) The rates shall be paid for all labor performed on the contract that meets the labor qualifications specified in the contract. Labor hours incurred to perform tasks for which labor qualifications were specified in the contract will not be paid to the extent the work is performed by individuals that do not meet the qualifications specified in the contract, unless specifically authorized by the Contracting Officer.

(C) Invoices may be submitted once each month (or at more frequent intervals, if approved by the Contracting Officer) to the Contracting Officer or the authorized representative.

(D) When requested by the Contracting Officer or the authorized representative, the Contractor shall substantiate invoices (including any subcontractor hours reimbursed at the hourly rate in the schedule) by evidence of actual payment, individual daily job timecards, records that verify the employees meet the qualifications for the labor categories specified in the contract, or other substantiation specified in the contract.

(E) Unless the Schedule prescribes otherwise, the hourly rates in the Schedule shall not be varied by virtue of the Contractor having performed work on an overtime basis.

(1) If no overtime rates are provided in the Schedule and the Contracting Officer approves overtime work in advance, overtime rates shall be negotiated.

(2) Failure to agree upon these overtime rates shall be treated as a dispute under the Disputes clause of this contract.

(3) If the Schedule provides rates for overtime, the premium portion of those rates will be reimbursable only to the extent the overtime is approved by the Contracting Officer.

(ii) *Materials.*

(A) If the Contractor furnishes materials that meet the definition of a commercial product at FAR 2.101, the price to be paid for such materials shall not exceed the Contractor's established catalog or market price, adjusted to reflect the-

(1) Quantities being acquired; and

(2) Any modifications necessary because of contract requirements.

(B) Except as provided for in paragraph (i)(1)(ii)(A) and (D)(2) of this clause, the Government will reimburse the Contractor the actual cost of materials (less any rebates, refunds, or discounts received by the contractor that are identifiable to the contract) provided the Contractor-

(1) Has made payments for materials in accordance with the terms and conditions of the agreement or invoice; or

(2) Makes these payments within 30 days of the submission of the Contractor's payment request to the Government and such payment is in accordance with the terms and conditions of the agreement or invoice.

(C) To the extent able, the Contractor shall-

(1) Obtain materials at the most advantageous prices available with due regard to securing prompt delivery of satisfactory materials; and

(2) Give credit to the Government for cash and trade discounts, rebates, scrap, commissions, and other amounts that are identifiable to the contract.

(D) Unless listed below, other direct and indirect costs will not be reimbursed.

(1) *Other direct costs.* The Government will reimburse the Contractor on the basis of actual cost for the following, provided such costs comply with the requirements in paragraph (i)(1)(ii)(B) of this clause: ____ [Insert each element of other direct costs (e.g., travel, computer usage charges, etc. Insert "None" if no reimbursement for other direct costs will be provided. If this is an indefinite delivery contract, the Contracting Officer may insert "Each order must list separately the elements of other direct charge(s) for that order or, if no reimbursement for other direct costs will be provided, insert 'None'".]

(2) *Indirect costs (material handling, subcontract administration, etc.).* The Government will reimburse the Contractor for indirect costs on a pro-rata basis over the period of contract performance at the following fixed price: ____ [Insert a fixed amount for the indirect costs and payment schedule. Insert "\$0" if no fixed price reimbursement for indirect costs will be provided. (If this is an indefinite delivery contract, the Contracting Officer may insert "Each order must list separately the fixed amount for the indirect costs and payment schedule or, if no reimbursement for indirect costs, insert 'None')."]

(2) *Total cost.* The total cost to the Government for the performance of this contract shall not exceed the ceiling price set forth in the Schedule. The Contractor agrees to use its best efforts to perform the work specified in the Schedule and all obligations under this contract within such ceiling price. If at any time the Contractor has reason to believe that the hourly rate payments and material costs that will accrue in performing this contract in the next succeeding 30 days, if added to all other payments and costs previously accrued, will exceed 85 percent of the ceiling price in the Schedule, the Contractor shall notify the Contracting Officer giving a revised estimate of the total price to the Government for performing this contract with supporting reasons and documentation. If at any time during the performance of this contract, the Contractor has reason to believe that the total price to the Government for performing this contract will be substantially greater or less than the stated ceiling price, the Contractor shall so notify the Contracting Officer, giving a revised estimate of the total price for performing this contract, with supporting reasons and documentation. If at any time during performance of this contract, the Government has reason to believe that the work to be required in performing this contract will be substantially greater or less than the stated ceiling price, the Contracting Officer will so advise the Contractor, giving the revised estimate of the total amount of effort to be required under the contract.

(3) *Ceiling price.* The Government will not be obligated to pay the Contractor any amount in excess of the ceiling price in the Schedule, and the Contractor shall not be obligated to continue performance if to do so would exceed the ceiling price set forth in the Schedule, unless and until the Contracting Officer notifies the Contractor in writing that the ceiling price has been increased and specifies in the notice a revised ceiling that shall constitute the ceiling price for performance under this contract. When and to the extent that the ceiling price set forth in the Schedule has been increased, any hours expended and material costs incurred by the Contractor in excess of the ceiling price before the increase shall be allowable to the same extent as if the hours expended and material costs had been incurred after the increase in the ceiling price.

(4) *Access to records.* At any time before final payment under this contract, the Contracting Officer (or authorized representative) will have access to the following (access shall be limited to the listing below unless otherwise agreed to by the Contractor and the Contracting Officer):

(i) Records that verify that the employees whose time has been included in any invoice meet the qualifications for the labor categories specified in the contract;

(ii) For labor hours (including any subcontractor hours reimbursed at the hourly rate in the schedule), when timecards are required as substantiation for payment-

(A) The original timecards (paper-based or electronic);

(B) The Contractor's timekeeping procedures;

(C) Contractor records that show the distribution of labor between jobs or contracts; and

(D) Employees whose time has been included in any invoice for the purpose of verifying that these employees have worked the hours shown on the invoices.

(iii) For material and subcontract costs that are reimbursed on the basis of actual cost-

(A) Any invoices or subcontract agreements substantiating material costs; and

(B) Any documents supporting payment of those invoices.

(5) *Overpayments/Underpayments.* Each payment previously made shall be subject to reduction to the extent of amounts, on preceding invoices, that are found by the Contracting Officer not to have been properly payable and shall also be subject to reduction for overpayments or to increase for underpayments. The Contractor shall promptly pay any such reduction within 30 days unless the parties agree otherwise. The Government will pay any such increases within 30 days, unless the parties agree otherwise. The Contractor's payment will be made by check. If the Contractor becomes aware of a duplicate invoice payment or that the Government has otherwise overpaid on an invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6) *Interest.*

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury, as

provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, and then at the rate applicable for each six-month period as established by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) The Contracting Officer will issue a final decision if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt in a timely manner;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer.

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR part 32 in effect on the date of this contract.

(viii) Upon receipt and approval of the invoice designated by the Contractor as the "completion invoice" and supporting documentation, and upon compliance by the Contractor with all terms of this contract, any outstanding balances will be paid within 30 days unless the parties agree

otherwise. The completion invoice, and supporting documentation, shall be submitted by the Contractor as promptly as practicable following completion of the work under this contract, but in no event later than 1 year (or such longer period as the Contracting Officer may approve in writing) from the date of completion.

(7) *Release of claims.* The Contractor, and each assignee under an assignment entered into under this contract and in effect at the time of final payment under this contract, shall execute and deliver, at the time of and as a condition precedent to final payment under this contract, a release discharging the Government, its officers, agents, and employees of and from all liabilities, obligations, and claims arising out of or under this contract, subject only to the following exceptions:

(i) Specified claims in stated amounts, or in estimated amounts if the amounts are not susceptible to exact statement by the Contractor.

(ii) Claims, together with reasonable incidental expenses, based upon the liabilities of the Contractor to third parties arising out of performing this contract, that are not known to the Contractor on the date of the execution of the release, and of which the Contractor gives notice in writing to the Contracting Officer not more than 6 years after the date of the release or the date of any notice to the Contractor that the Government is prepared to make final payment, whichever is earlier.

(iii) Claims for reimbursement of costs (other than expenses of the Contractor by reason of its indemnification of the Government against patent liability), including reasonable incidental expenses, incurred by the Contractor under the terms of this contract relating to patents.

(8) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(9) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work under this contract and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid an amount for direct labor hours (as defined in the Schedule of the contract) determined by multiplying the number of direct labor hours expended before the effective date of termination by the hourly rate(s) in the contract, less any hourly rate payments already made to the Contractor plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system that have resulted from the termination. The Contractor shall not be required to comply

with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred that reasonably could have been avoided.

(m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon written request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. Subject to the terms of this contract, the Contractor shall be paid an amount computed under paragraph (i), Payments, of this clause, but the "hourly rate" for labor hours expended in furnishing work not delivered to or accepted by the Government shall be reduced to exclude that portion of the rate attributable to profit. Unless otherwise specified in paragraph (b)(4) of this clause, the portion of the "hourly rate" attributable to profit shall be 10 percent. In the event of termination for cause, the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

52.219-4	Notice of Price Evaluation	2026-02
	Preference for HUBZone Small	
	Business Concerns. (Deviation	
	2026-O0038)	

Notice of Price Evaluation preference for HUBZone Small Business Concerns (Feb 2026)
(Deviation 2026-O0038)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(b) Waiver of evaluation preference. A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

[] Offeror chooses to waive the evaluation preference.

(c) Joint venture. A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.211-7003	Item Unique Identification and Valuation.	2023-01		

ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) Definitions. As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

" Enterprise " means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

" Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459.

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

" Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) Unique item identifier.

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or

Exhibit Line Item Number Item Description

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or

Exhibit Line Item Number Item Description

(If items are identified in the Schedule, insert "See Schedule in this table.")

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparable and DoD serially managed nonreparables as specified in Attachment Number _____.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number _____.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) Data syntax and semantics of unique item identifiers. The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) Unique item identifier.

(i) The Contractor shall-

(A) Determine whether to-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U. S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in

accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

(1) Unique item identifier.

(2) Unique item identifier type.

(3) Issuing agency code (if concatenated unique item identifier is used).

(4) Enterprise identifier (if concatenated unique item identifier is used).

(5) Original part number (if there is serialization within the original part number).

(6) Lot or batch number (if there is serialization within the lot or batch number).

(7) Current part number (optional and only if not the same as the original part number).

(8) Current part number effective date (optional and only if current part number is used).

(9) Serial number (if concatenated unique item identifier is used).

(10) Government's unit acquisition cost.

(11) Unit of measure.

(12) Type designation of the item as specified in the contract schedule, if any.

(13) Whether the item is an item of Special Tooling or Special Test Equipment.

(14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

(1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.

(2) Unique item identifier of the embedded subassembly, component, or part.

(3) Unique item identifier type.**

(4) Issuing agency code (if concatenated unique item identifier is used).**

(5) Enterprise identifier (if concatenated unique item identifier is used).**

(6) Original part number (if there is serialization within the original part number).**

(7) Lot or batch number (if there is serialization within the lot or batch number).**

(8) Current part number (optional and only if not the same as the original part number).**

(9) Current part number effective date (optional and only if current part number is used).**

(10) Serial number (if concatenated unique item identifier is used).**

(11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods-

(i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) ____, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) Subcontracts. If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

252.232-7006	Wide Area WorkFlow Payment Instructions.	2023-01
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WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	W916TX
Issue By DoDAAC	W81EWF
Admin DoDAAC	W81EWF
Inspect By DoDAAC	W81EWF
Ship To Code	_____
Ship From Code	_____
Mark For Code	_____
Service Approver (DoDAAC)	_____
Service Acceptor (DoDAAC)	_____
Accept at Other DoDAAC	_____
LPO DoDAAC	_____
DCAA Auditor DoDAAC	_____
Other DoDAAC(s)	_____

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	2026-02		
52.222-3	Convict Labor. (Deviation 2026-O0038)	2026-02		
52.222-90	Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0038)	2026-04		
52.223-23	Sustainable Products. (Deviation 2026-O0038)	2026-02		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	2026-02		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-04		
52.247-18	Multiple Shipments.	1984-04		
52.247-21	Contractor Liability for Personal Injury and/or Property Damage.	1984-04		
52.247-22	Contractor Liability for Loss of and/or Damage to Freight other than Household Goods.	1984-04		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	1991-12		
252.225-7017	Photovoltaic Devices.	2024-03		
252.247-7028	Application for U.S. Government Shipping Documentation/ Instructions.	2012-06		

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.246-17	Warranty of Supplies of a Noncomplex Nature.	2003-06		

Warranty of Supplies of a Noncomplex Nature (June 2003)

(a) *Definitions.* As used in this clause-

Acceptance means the act of an authorized representative of the Government by which the Government assumes for itself, or as an agent of another, ownership of existing supplies, or approves specific services as partial or complete performance of the contract.

Supplies means the end items furnished by the Contractor and related services required under this contract. The word does not include "data."

(b) Contractor's obligations.

(1) Notwithstanding inspection and acceptance by the Government of supplies furnished under this contract, or any condition of this contract concerning the conclusiveness thereof, the Contractor warrants that for warranty period

(i) All supplies furnished under this contract will be free from defects in material or workmanship and will conform with all requirements of this contract; and

(ii) The preservation, packaging, packing, and marking, and the preparation for, and method of, shipment of such supplies will conform with the requirements of this contract.

(2) When return, correction, or replacement is required, transportation charges and responsibility for the supplies while in transit shall be borne by the Contractor. However, the Contractor's liability for the transportation charges shall not exceed an amount equal to the cost of transportation by the usual commercial method of shipment between the place of delivery specified in this contract and the Contractor's plant, and return.

(3) Any supplies or parts thereof, corrected or furnished in replacement under this clause, shall also be subject to the terms of this clause to the same extent as supplies initially delivered. The warranty, with respect to supplies or parts thereof, shall be equal in duration to that in paragraph (b)(1) of this clause and shall run from the date of delivery of the corrected or replaced supplies.

(4) All implied warranties of merchantability and "fitness for a particular purpose" are excluded from any obligation contained in this contract.

(c) Remedies available to the Government.

(1) The Contracting Officer shall give written notice to the Contractor of any breach of warranties in paragraph (b)(1) of this clause within "45 days of the last delivery under this contract," or "45 days after discovery of the defect".

(2) Within a reasonable time after the notice, the Contracting Officer may either-

(i) Require, by written notice, the prompt correction or replacement of any supplies or parts thereof (including preservation, packaging, packing, and marking) that do not conform with the requirements of this contract within the meaning of paragraph (b)(1) of this clause; or

(ii) Retain such supplies and reduce the contract price by an amount equitable under the circumstances.

(3)

(i) If the contract provides for inspection of supplies by sampling procedures, conformance of supplies or components subject to warranty action shall be determined by the applicable sampling procedures in the contract. The Contracting Officer-

- (A) May, for sampling purposes, group any supplies delivered under this contract;
 - (B) Shall require the size of the sample to be that required by sampling procedures specified in the contract for the quantity of supplies on which warranty action is proposed;
 - (C) May project warranty sampling results over supplies in the same shipment or other supplies contained in other shipments even though all of such supplies are not present at the point of reinspection; provided, that the supplies remaining are reasonably representative of the quantity on which warranty action is proposed; and
 - (D) Need not use the same lot size as on original inspection or reconstitute the original inspection lots.
- (ii) Within a reasonable time after notice of any breach of the warranties specified in paragraph (b)(1) of this clause, the Contracting Officer may exercise one or more of the following options:
- (A) Require an equitable adjustment in the contract price for any group of supplies.
 - (B) Screen the supplies grouped for warranty action under this clause at the Contractor's expense and return all nonconforming supplies to the Contractor for correction or replacement.
 - (C) Require the Contractor to screen the supplies at locations designated by the Government within the contiguous United States and to correct or replace all nonconforming supplies.
 - (D) Return the supplies grouped for warranty action under this clause to the Contractor (irrespective of the f.o.b. point or the point of acceptance) for screening and correction or replacement.
- (4)
- (i) The Contracting Officer may, by contract or otherwise, correct or replace the nonconforming supplies with similar supplies from another source and charge to the Contractor the cost occasioned to the Government thereby if the Contractor-
- (A) Fails to make redelivery of the corrected or replaced supplies within the time established for their return; or
 - (B) Fails either to accept return of the nonconforming supplies or fails to make progress after their return to correct or replace them so as to endanger performance of the delivery schedule, and in either of these circumstances does not cure such failure within a period of 10 days (or such longer period as the Contracting Officer may authorize in writing) after receipt of notice from the Contracting Officer specifying such failure.
- (ii) Instead of correction or replacement by the Government, the Contracting Officer may require an equitable adjustment of the contract price. In addition, if the Contractor fails to furnish timely disposition instructions, the Contracting Officer may dispose of the nonconforming supplies for the Contractor's account in a reasonable manner. The Government is entitled to reimbursement

from the Contractor, or from the proceeds of such disposal, for the reasonable expenses of the care and disposition of the nonconforming supplies, as well as for excess costs incurred or to be incurred.

(5) The rights and remedies of the Government provided in this clause are in addition to and do not limit any rights afforded to the Government by any other clause of this contract.

(End of clause)

52.247-33 F.o.b. Origin, with Differentials. 2006-02

F.o.b. Origin, with Differentials (Feb 2006)

(a) The term "f.o.b. origin, with differentials," as used in this clause, means-

(1) Free of expense to the Government delivered-

(i) On board the indicated type of conveyance of the carrier (or of the Government, if specified) at a designated point in the city, county, and State from which the shipments will be made and from which line-haul transportation service (as distinguished from switching, local drayage, or other terminal service) will begin;

(ii) To, and placed on, the carrier's wharf (at shipside, within reach of the ship's loading tackle, when the shipping point is within a port area having water transportation service) or the carrier's freight station;

(iii) To a U.S. Postal Service facility; or

(iv) If stated in the solicitation, to any Government-designated point located within the same city or commercial zone as the f.o.b. origin point specified in the contract (the Federal Motor Carrier Safety Administration prescribes commercial zones at Subpart B of 49 CFR part 372); and

(2) Differentials for mode of transportation, type of vehicle, or place of delivery as indicated in Contractor's offer may be added to the contract price.

(b) The Contractor shall-

(1)

- (i) Pack and mark the shipment to comply with contract specification; or
- (ii) In the absence of specifications, prepare the shipment in conformance with carrier requirements to protect the goods and to ensure assessment of the lowest applicable transportation charge;

(2)

- (i) Order specified carrier equipment when requested by the Government; or
 - (ii) If not specified, order appropriate carrier equipment not in excess of capacity to accommodate shipment;
- (3) Deliver the shipment in good order and condition to the carrier, and load, stow, trim, block, and/or brace carload or truckload shipment (when loaded by the Contractor) on or in the carrier's conveyance as required by carrier rules and regulations;

(4) Be responsible for any loss of and/or damage to the goods-

- (i) Occurring before delivery to the carrier;
- (ii) Resulting from improper packing and marking; or
- (iii) Resulting from improper loading, stowing, trimming, blocking, and/or bracing of the shipment, if loaded by the Contractor on or in the carrier's conveyance;

(5) Complete the Government bill of lading supplied by the ordering agency or, when a Government bill of lading is not supplied, prepare a commercial bill of lading or other transportation receipt. The bill of lading shall show-

- (i) A description of the shipment in terms of the governing freight classification or tariff (or Government rate tender) under which lowest freight rates are applicable;

- (ii) The seals affixed to the conveyance with their serial numbers or other identification;
 - (iii) Lengths and capacities of cars or trucks ordered and furnished;
 - (iv) Other pertinent information required to effect prompt delivery to the consignee, including name, delivery address, postal address and ZIP code of consignee, routing, etc.;
 - (v) Special instructions or annotations requested by the ordering agency for bills of lading; e.g., "This shipment is the property of, and the freight charges paid to the carrier will be reimbursed by, the Government"; and
 - (vi) The signature of the carrier's agent and the date the shipment is received by the carrier; and
- (6) Distribute the copies of the bill of lading, or other transportation receipts, as directed by the ordering agency.

(c)

(1) It may be advantageous to the offeror to submit f.o.b. origin prices that include only the lowest cost to the Contractor for loading of shipment at the Contractor's plant or most favorable shipping point. The cost beyond that plant or point of bringing the supplies to the place of delivery and the cost of loading, blocking, and bracing on the type vehicle specified by the Government at the time of shipment may exceed the offeror's lowest cost when the offeror ships for the offeror's account. Accordingly, the offeror may indicate differentials that may be added to the offered price. These differentials shall be expressed as a rate in cents for each 100 pounds (CWT) of the supplies for one or more of the options under this clause that the Government may specify at the time of shipment.

(2) These differential(s) will be considered in the evaluation of offers to determine the lowest overall cost to the Government. If, at the time of shipment, the Government specifies a mode of transportation, type of vehicle, or place of delivery for which the offeror has set forth a differential, the Contractor shall include the total of such differential costs (the applicable differential multiplied by the actual weight) as a separate reimbursable item on the Contractor's invoice for the supplies.

(3) The Government shall have the option of performing or arranging at its own expense any transportation from Contractor's shipping plant or point to carrier's facility at the time of shipment

and, whenever this option is exercised, the Government shall make no reimbursement based on a quoted differential.

(4) Offeror's differentials in cents for each 100 pounds for optional mode of transportation, types of vehicle, transportation within a mode, or place of delivery, specified by the Government at the time of shipment and not included in the f.o.b. origin price indicated in the Schedule by the offeror, are as follows:

_____ (carload, truckload, less-load,

_____ wharf, flatcar, driveaway, etc.)

(End of clause)

52.252-2	Clauses Incorporated by Reference.	1998-02
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Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

www.acquisition.gov

(End of clause)

Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	2026-02		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	2023-06		

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05		

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense

telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

This is a combined synopsis/solicitation for commercial items prepared in accordance with the format in FAR Subpart 12.6, as supplemented with additional information included in this solicitation. Solicitation W912HZ26QA022 is being issued as a Request for Quote (RFQ) with the intent to award as a simplified acquisition. This requirement is full and open competition basis and utilizes NAICS 334511 with a size standard of 1,250 employees.

This procurement is being conducted in accordance with regulation at FAR Part 12, Acquisition of Commercial Items.

Oral communications ARE NOT acceptable in response to this notice.

SAM Registration: Pursuant to FAR 52.204-7, System for Award Management, prior to award offerors shall be registered in the System for Award Management (SAM), if you are not registered in SAM, an award CANNOT be made to your company. You may register electronically at <http://www.SAM.gov>.

All technical inquiries and questions relating to this solicitation are to be submitted to Ms. Shinita Jordan via email at Shinita.M.Jordan@usace.army.mil and Ms. Sonia Boyd via email at Sonia.J.Boyd@usace.army.mil. Offerors shall submit questions at least 3 business days prior to the closing /response date of this solicitation in order to ensure adequate time to form an appropriate response and amend the solicitation, if necessary. Offerors are requested to review the specifications in their entirety and review the SAM.gov website for answers to questions prior to submission of a new inquiry.

Quotes are due on or before May 13, 2026, no later than 1:00 PM CT via email to: Shinita.M.Jordan@usace.army.mil. and Sonia.J.Boyd@usace.army.mil.

The Offeror is responsible for reading all information contained in this solicitation and all attachments, if applicable. Offerors should check the SAM.gov website often for any information regarding this solicitation and/or amendments to this solicitation. Offerors are responsible for ensuring that their quotes are received prior to the scheduled closing date and time. Emails and quotes must be clearly identified as being submitted for Solicitation Number W912HZ26QA022.

*** END OF NARRATIVE ***

Evaluation - Commercial Products and Commercial Services

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-2	Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

1. Lowest price-technically acceptable

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	2024-09		
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-00038)	2026-02		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	2020-06		

Tax on Certain Foreign Procurements-Notice and Representation (Jun 2020)

(a) Definitions. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is

provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror must select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

52.252-1	Solicitation Provisions	1998-02
	Incorporated by Reference.	

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

www.acquisition.gov

(End of provision)

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.225-7018	Photovoltaic Devices-Certificate.	2024-03		

PHOTOVOLTAIC DEVICES-CERTIFICATE (MAR 2024)

(a) Definitions. "Bahraini photovoltaic device," "Caribbean Basin photovoltaic device," "designated country," "designated country photovoltaic device," "domestic photovoltaic device," "foreign photovoltaic device," "Free Trade Agreement country," "Free Trade Agreement photovoltaic device," "Korean photovoltaic device," "least developed country photovoltaic device," "Moroccan photovoltaic device," "Panamanian photovoltaic device," "Peruvian photovoltaic device," "photovoltaic device," "qualifying country," "qualifying country photovoltaic device," "United States," "U.S.-made photovoltaic device," and "WTO GPA country photovoltaic device" have the meanings given in the Photovoltaic Devices clause of this solicitation.

(b) Restrictions. The following restrictions apply, depending on the estimated aggregate value of photovoltaic devices to be utilized under a resultant contract:

(1) If more than the micro-purchase threshold but less than \$174,000, then the Government will

not accept an offer specifying the use of other foreign photovoltaic devices in paragraph (d)(2)(ii), (d)(3)(ii), (d)(4)(ii), or (d)(5)(ii) of this provision, unless the Offeror documents to the satisfaction of the Contracting Officer that the price of the foreign photovoltaic device plus 50 percent is less than the price of a comparable domestic photovoltaic device.

(2) If \$174,000 or more, then the Government will consider only offers that utilize photovoltaic devices that are U.S.-made, qualifying country, or designated country photovoltaic devices.

(c) Country in which a designated country photovoltaic device was wholly manufactured or was substantially transformed. If the estimated value of the photovoltaic devices to be utilized under a resultant contract exceeds \$102,280, the Offeror's certification that such photovoltaic device (e.g., solar panel) is a designated country photovoltaic device shall be consistent with country of origin determinations by the U.S. Customs and Border Protection with regard to importation of the same or similar photovoltaic devices into the United States. If the Offeror is uncertain as to what the country of origin would be determined to be by the U.S. Customs and Border Protection, the Offeror shall request a determination from U.S. Customs and Border Protection. (See <https://www.cbp.gov/trade/rulings>.)

(d) Certification and identification of country of origin.

[The Offeror shall check the block and fill in the blank for one of the following paragraphs, based on the estimated value and the country of origin of photovoltaic devices to be utilized in performance of the contract:]

____ (1) No photovoltaic devices will be utilized in performance of the contract, or such photovoltaic devices have an estimated value that does not exceed the micro-purchase threshold.

(2) If more than the micro-purchase threshold but less than \$100,000-

____ (i) The Offeror certifies that each photovoltaic device to be utilized in performance of the contract is a domestic photovoltaic device;

____ (ii) The Offeror certifies that each photovoltaic device to be utilized in performance of the contract is a Canadian photovoltaic device or a qualifying country photovoltaic device [Offeror to specify country of origin ____]; or

____ (iii) The foreign (other than Canadian or qualifying country) photovoltaic devices to be utilized in performance of the contract are the product of ____.[Offeror to specify country of

origin, if known, and provide documentation that the cost of a domestic photovoltaic device would be unreasonable in comparison to the cost of the proposed foreign photovoltaic device, i.e. that the price of the foreign photovoltaic device plus 50 percent is less than the price of a comparable domestic photovoltaic device.]

(3) If less than \$100,000-

____ (i) The Offeror certifies that each photovoltaic device to be utilized in performance of the contract is a domestic photovoltaic device;

____ (ii) The Offeror certifies that each photovoltaic device to be utilized in performance of the contract is a qualifying country photovoltaic device [Offeror to specify country of origin____]; or

____ (iii) The foreign photovoltaic devices to be utilized in performance of the contract are the product of ____.[Offeror to specify country of origin, if known, and provide documentation that the cost of a domestic photovoltaic device would be unreasonable in comparison to the cost of the proposed foreign photovoltaic device, i.e. that the price of the foreign photovoltaic device plus 50 percent is less than the price of a comparable domestic photovoltaic device.]

(4) If \$100,000 or more but less than \$102,280-

____ (i) The Offeror certifies that each photovoltaic device to be utilized in performance of the contract is a domestic photovoltaic device;

____ (ii) The Offeror certifies that each photovoltaic device to be utilized in performance of the contract is a Free Trade Agreement country photovoltaic device (other than a Bahraini, Korean, Moroccan, Panamanian, or Peruvian photovoltaic device) or a qualifying country photovoltaic device [Offeror to specify country of origin____]; or

____ (iii) The offered foreign photovoltaic devices (other than those from countries listed in paragraph (d)(4)(ii) of this provision) are the product of ____.[Offeror to specify country of origin, if known, and provide documentation that the cost of a domestic photovoltaic device would be unreasonable in comparison to the cost of the proposed foreign photovoltaic device, i.e. that the price of the foreign photovoltaic device plus 50 percent is less than the price of a comparable domestic photovoltaic device.]

(5) If \$100,000 or more but less than \$174,000-

____ (i) The Offeror certifies that each photovoltaic device to be utilized in performance of the

contract is a domestic photovoltaic device;

_____ (ii) The Offeror certifies that each photovoltaic device to be utilized in performance of the contract is a Free Trade Agreement country photovoltaic device (other than a Bahraini, Moroccan, Panamanian, or Peruvian photovoltaic device) or a qualifying country photovoltaic device [Offeror to specify country of origin_____]; or

_____ (iii) The offered foreign photovoltaic devices (other than those from countries listed in paragraph (d)(5)(ii) of this provision) are the product of _____. [Offeror to specify country of origin, if known, and provide documentation that the cost of a domestic photovoltaic device would be unreasonable in comparison to the cost of the proposed foreign photovoltaic device, i. e. that the price of the foreign photovoltaic device plus 50 percent is less than the price of a comparable domestic photovoltaic device.]

(6) If \$174,000 or more, the Offeror certifies that each photovoltaic device to be used in performance of the contract is-

_____ (i) A U.S.-made photovoltaic device; or

_____ (ii) A designated country photovoltaic device or a qualifying country photovoltaic device. [Offeror to specify country of origin_____.]

(End of provision)